

Arlington Town Meeting Guidelines

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Questions and feedback about these procedures can be directed to the Moderator.

Motions and Votes

Policies for Main Motions and Subsidiary Motions

This section covers the following types of motions:

- main motions which are customarily defined by the recommended votes contained in the reports submitted by Town boards and committees to Town Meeting
- subsidiary motions brought by TMMs, most commonly:
 - motions to amend the main motion ("amendments")
 - motions to substitute the main motion ("substitute motions")

Motions brought before Town Meeting are expected to be introduced by at least one of the following methods:

1. **Electronic distribution with printouts provided at the meeting.** Motions submitted in advance and reviewed by the Moderator for scope are published electronically in the Annotated Warrant and distributed to the TMM Email List by 5 pm of the business day before the meeting at which the motion is made – 5 pm Friday for a Monday meeting, 5 pm Tuesday for a Wednesday meeting, or a day earlier in the case of holidays. The Town will provide printed copies of these motions at the meeting during TMM check-in.
 - Motions submitted by TMMs that are distributed via the Annotated Warrant and the TMM Email List are motions for which the Moderator has made a preliminary assessment in regard to scope. Such motions must be submitted to the Moderator at least two business days in advance of the meeting at which the motion is made (e.g. by Thursday evening for a motion expected at the meeting on the following Monday); it is highly recommended that motions be submitted further in advance to allow sufficient time for feedback and revisions in case initial submissions fail to reach an affirmative decision on scope. When a request or follow up is submitted by email to the Moderator, a response can be expected within one business day; review of successive revisions to a motion may be expedited by including "red-line edits", "tracking changes", or other indication of changes across revisions. If the submission requires multiple rounds of feedback, expect multiple business days for review.
 - Movers may present these motions ahead of the speaker queue. Ordering of such motions is generally the order in which they were submitted, but may be reordered at the discretion of the Moderator.
2. **Printouts provided at the meeting with no prior public notice required.** Printed handouts containing the motion's language may be placed in a clearly designated "print-only motions" section of handouts at the back table for TMMs to acquire during check-in. Individual copies must be submitted to the Moderator, the Town Clerk, and Town Counsel in person before the start of the meeting at which the motion is made. (Note that TMMs who prefer electronic documents and generally skip the paper printouts should take one copy of each print-only motion so that they have the vote language available at the meeting, as it may not be feasible for it to be displayed in a way that is legible.)
 - The author of the print-only motion is responsible for bringing 300 printed copies to Town Meeting at least 30 minutes before the start of the meeting at which the motion is expected. Alternatively, if the motion is not reached on the first night that it is made available, the author may submit the motion for review by the Moderator for scope so that it can be distributed electronically instead, as described above.
 - TMMs should retain their copies of these printouts in case the motion does not come up the first night it is made available.
 - This method of distribution is not recommended, but is permitted to cover cases that the other methods cannot accommodate.
 - Movers may move and present these motions ahead of the speaker queue. Ordering of such motions is generally the order in which they were submitted, but may be reordered at the discretion of the Moderator.

3. **Short motions from the floor of Town Meeting.** Subsidiary motions made from the floor of Town Meeting without prior notice may be permitted if the motion's language does not exceed approximately 20 words.
 - The Town Clerk will prepare a paper copy of the motion which the mover must sign before the motion is voted by the meeting.

All motions are subject to the Moderator's ruling on scope and order.

The Town Clerk or Moderator can provide TMMs with a Word Doc template in the correct format for the desired motion. Submitting a proposed motion as a Word Doc or PDF and emailing the Moderator, Town Counsel, and Town Clerk can speed up the review process.

Presentation of Subsidiary Motions

When movers of subsidiary motions (most often motions to amend or substitute) are recognized by the Moderator to address the Meeting ahead of speakers from the speaker queue, movers are expected to focus their remarks on the motion that they are introducing and its relation to the motion that it modifies (most often the main motion). During the presentation of the subsidiary motion under a non-resolution article, the mover may offer brief commentary on other matters under the article, but only for a small fraction of their speaking time. If a mover wishes to discuss matters under the article unrelated to their motion more extensively, they may request to speak via the speaker queue. If they are recognized from the speaker queue by the Moderator, they are allotted five minutes for their second appearance under the article, as specified by the Town Bylaws (Title I Article 1 §7 part C):

No person shall speak, or otherwise hold the floor, for a second time on any subject for more than five minutes.

See the section **Resolution Articles** for guidance on presenting subsidiary motions for resolutions.

Sequence of Motions

Amendments and substitute motions must be voted before the motions that they amend or substitute. (See *Town Meeting Time*, 3rd edition, §40.)

At the Moderator's discretion, multiple amendments that amend the same motion are voted generally in the order of broader, more significant changes before narrower, less significant changes.

Motions under an article will generally be considered in the following order:

1. Motions submitted to the Moderator in advance, provided there has been sufficient time for review and an affirmative decision by the Moderator on scope.
2. Motions made available via printouts prior to the start of the meeting at which the corresponding article is taken up.

3. Short motions made by speakers from the speaking queue.

Additionally, the Moderator routinely takes motions from other officers at the meeting, e.g. motions from the Chair of the Finance Committee to handle assorted bookkeeping.

In the case of multiple amendments or substitute motions under an article, the custom at Arlington Town Meeting deviates from standard practice. *Town Meeting Time*, 3rd edition, §23, states: "No more than one motion of the same rank may be pending at one time." Since primary amendments and substitute motions all have the same rank, this rule suggests that any two of such motions cannot be pending at the same time. (A motion is pending from the moment it is moved to the moment that voting on the motion closes.) Arlington Town Meeting has a tradition of relaxing this rule so that amendments and substitute motions under a given article generally are moved upfront, debated altogether, then voted in sequence after debate. (Primary amendments – the most common variety – are those that amend a main motion.)

This sequence of motions may be adjusted at the Moderator's discretion, especially in cases where an alternative sequence may result in greater clarity for the meeting.

Committee Reports and Recommended Votes

One of the first articles in each Warrant is titled "Reports of Committees." Traditionally, an officer of the meeting – customarily the Finance Committee Chair – makes a motion under that article to put the recommended votes contained in committees' reports before the meeting without further motion. This saves the meeting time as it waives the requirement that the vote language of each recommended vote be read aloud in its entirety as the meeting takes up each article. The latest vote language is made available via printouts during TMM check-in at each session of Town Meeting, and time-permitting, electronically in advance via the Annotated Warrant and the TMM Email List. Once committees' reports have been published and printed, all corrections must be sent to the Town Clerk.

Committees' reports may contain recommended votes that represent the initial main motion under an article. Committees may submit supplemental reports to make additions or corrections to previously submitted reports. **The initial main motion for an article is primarily determined by the vote language contained in the relevant report, and in the absence of such a reported vote, may be offered by a Town Meeting Member.** Since recommended votes in committee reports ultimately become main motions at Town Meeting, the section **Policies for Main Motions and Subsidiary Motions** applies. Specifically, if a committee wishes to update their recommended vote prior to the article being taken up by the meeting, the committee must distribute a **supplemental report** electronically via Annotated Warrant and TMM Email List at least one business day in advance *or* print 300 copies for distribution in person at least 30 minutes prior to the start of the meeting. (Committee chairs should consider whether the meeting has sufficient notice of new information before printing a large number of copies, and consider asking the meeting to delay consideration of the article.) If a committee wishes to amend their recommended vote while the article is pending before the meeting, a motion – e.g. amendment or substitute motion which requires a majority vote of Town Meeting – is

required to do so. Corrections to recommended votes, e.g. incorrect summations in financial reports and typos, may be allowed administratively at the discretion of the Moderator.

Verbal reports to Town Meeting from boards and committees under the article "Reports of Committees" are limited to 4 minutes unless a majority of Town Meeting votes to grant a specific extension prior to beginning. Conversely, the Chair of the committee (or Vice Chair in their absence) is limited to 7 minutes to introduce the committee's recommended vote when the article comes before the meeting, unless granted a specific extension by a majority of Town Meeting. (Town Bylaws, Title I Article 1 §7 parts A-C)

Submitting Information for the Annotated Warrant

In addition to the information contained in committee reports, other materials that contain information that is relevant to the Warrant Articles can be included in the Annotated Warrant. Items relevant to an article may be added before the article is disposed of. Note that motions such as amendments and substitute motions are covered in the section **Motions and Votes**. The Moderator determines whether materials are within scope of a given article.

Presentation Guidelines

Charts, photos, and other visuals that are pertinent to an Article or announcement (during Announcements and Resolutions) will be permitted at Town Meeting at the discretion of the Moderator, and if approved, presented through the Town's presentation system. Content should be formatted for an aspect ratio of 16:9 if possible.

Content with animations will not be permitted unless the animation is particularly relevant for conveying information or context to the meeting (simple slide-transition animations are acceptable but unnecessary). Please use large, easily legible fonts (preferably a simple sans-serif font such as Arial or Verdana) with high contrast between text and background colors so that participants in the back of Town Hall auditorium can read the text. Tables with several rows or columns may not be legible from the back of the auditorium. As a rule of thumb, slides using a font that can fit more than 8 lines of text are unlikely to be readable to participants in the rear of the auditorium.

Audio or video presentations may be permitted if the recording is less than one minute and provides important context that would be infeasible to convey by other means (e.g. aerial view of a location from drone footage).

Please submit presentation materials electronically at least 2 business days in advance to allow time for the Moderator to assess whether content is within scope, appropriate, and compatible with the Town's presentation system. Presentation material submitted within 2 business days runs the risk of being unavailable for display for technical reasons or being ruled out of scope at the meeting.

Presentations for articles must identify the Article number and presenter at the top of the first page or on the first slide.

Electronically Distributed Materials

Informational submissions to be included in the TMM Email List and Annotated Warrant that are not intended for live presentation at Town Meeting may be made by chairs of Town boards or committees, the Town Clerk, the Town Manager, department heads, and Town Meeting Members submitting material within the scope of a Warrant Article that is not yet closed. (This is essentially the same set of people who can speak at Town Meeting and introduce guest speakers.) Town Meeting Members may submit materials that they have co-signed with residents. Material containing images or non-trivial formatting must be submitted in PDF format or other widely available document formats; submissions may be converted to PDF when distributed or posted within the Annotated Warrant. Submissions are made to the Moderator who reviews and approves them. The Moderator asks that submissions from each TMM be limited to one email request per article per business day with no more than 3 documents in each email request.

Submissions must be sent to the Moderator and follow the schedule below for posting to the list.

- 1) Informational submissions relevant to a Warrant Article should be submitted by 5 pm of the business day before the meeting. Approved submissions will be posted by 5 pm on the day of the meeting.
- 2) All materials must be clearly marked as to who is submitting them: i.e.: Name and Precinct Number, or Town Department, at the top of the first page. Materials submitted on behalf of a committee must be submitted by either the Chair of the committee or an officially recognized administrator for the committee. Unidentified materials will not be posted.
- 3) If you wish to provide paper copies of a document, place them on the back table so Town Meeting Members can choose to collect them at check in. Printed materials must clearly indicate who wrote or sponsored them (name and precinct or address, Town Department, etc.)
- 4) If you submit materials that have been authored by someone else and have not been made available to the general public previously, then you must produce written permission from the author(s) for their material to be shared publicly as well as their explicit consent for their personally identifiable information and contact information to appear in the material.

The Moderator will exercise discretion over the appropriateness and relevance of the material for distribution, regardless of the source.

Once a submission related to a Warrant Article has been approved, it will be distributed to the TMM Email List and attached to the Annotated Warrant for that article, listed after board reports and subsidiary motions.

Questions about these processes and policies should be directed to the Moderator.

Announcements and Resolutions

Near the opening of the meeting each night, the Moderator calls for announcements and resolutions. Announcements are generally for sharing upcoming community events, forums, etc that are relevant to the community. The resolutions intended at this point in the meeting are for expressions of praise or admiration. Such resolutions are referenced in *Town Meeting Time* as "complimentary resolutions":

"Sometimes the town wishes to express its appreciation of some achievement or service on the part of a citizen, or sympathy on an illness or death. The opening of the meeting is the time for such expressions. No article is necessary." (*Town Meeting Time*, 3rd edition, §16)

Complimentary resolutions are distinct from articles in the Warrant that are categorized as "resolutions."

Each announcement and complimentary resolution is limited to 4 minutes. The Moderator will exercise discretion over the appropriateness and relevance of such requests. Examples of inappropriate requests include, but are not limited to: condemnations, commercial promotion, and announcements on behalf of political campaigns.

Please email presentation slides or flyers associated with announcements or resolutions at least one business day in advance to tmannouncement@town.arlington.ma.us to ensure compatibility with the presentation system at Town Hall.

Resolution Articles

Each resolution article is allowed two speakers – one proponent and one opponent – plus movers of any substantial subsidiary motions approved in advance, at the discretion of the Moderator. For Citizen Petition Resolutions, priority will be given to the petitioner when selecting the proponent who speaks in favor. Anyone interested in addressing the article as a proponent, an opponent, or a mover of a motion should contact the Town Moderator well in advance.

In addition to the guidance in the section **Presentation of Subsidiary Motions**, the expectation that movers focus their remarks on their subsidiary motion and its direct relation to the motion it modifies is even stricter for resolution articles given the limited speaker lineup. When speakers are recognized to present their subsidiary motions under a resolution article, it is not an appropriate opportunity for them to advocate for or against the main motion.

Consent Agenda

The Consent Agenda is a means of grouping several articles together so that Town Meeting can act on them with less procedural overhead than if the articles were handled in the normal sequential manner. This mechanism was introduced at Town Meeting in recent years to address recurring business and general housekeeping to reduce the amount of time spent on noncontroversial articles. The choice of

whether to use a Consent Agenda is at the Moderator's discretion. E.g. a Consent Agenda may be less useful for a Warrant with relatively few qualifying articles, as is often the case with Special Town Meetings.

A preliminary Consent Agenda will be produced by the Moderator in consultation with the Town Manager and chairs of reporting boards and committees. Reasons for including an article in the preliminary Consent Agenda include the following:

- The article's main motion is effectively an annually recurring motion that has been voted affirmatively by Town Meeting in the past by overwhelming margins.
- The article's main motion updates outdated references without substantially changing the meaning or intent.
- The article's main motion makes a clarifying change that the Moderator and reporting body expect to have minimal impact in practice.
- The article's main motion brings the Town into compliance with laws, local statutes, or other requirements with minimal anticipated impact in practice.
- The article is a Citizen's Petition with a recommended vote of "no action" and the petitioner does not intend to pursue a substitute motion.

Ultimately, inclusion of an article in the preliminary Consent Agenda is at the Moderator's discretion. **A document describing reasons for the inclusion of articles in the preliminary Consent Agenda will be published by the Moderator in advance of Town Meeting.** This document will provide contact information for each article so that Town Meeting Members and members of the public can inquire about Consent Agenda articles in advance.

Removal of articles from the Consent Agenda will be permitted only at Town Meeting. When the Moderator enumerates each article on the Consent Agenda, Town Meeting Members will have an opportunity to "hold" an article so that it is debated and voted separately at a later time. When a Town Meeting Member requests a "hold," they must announce their name and precinct; if the held article has a recommended vote of "no action," the Moderator will ask if the Town Meeting Member intends to submit a substitute motion or other appropriate motion in advance of consideration of that article. (Note: recommended votes of "no action" have no scope for debate unless or until a subsidiary motion is offered within the scope of the Warrant Article text, most often presented in the form of a substitute motion.)

After TMMs have had an opportunity to request articles to be held from the Consent Agenda, the meeting will vote on the final Consent Agenda.

The Consent Agenda is divided into parts, e.g. articles requiring a majority vote, articles requiring a two-thirds vote, and legislative articles that require some TMMs to recuse themselves to avoid a conflict of interest with their work outside of Town Meeting. A separate vote is taken for each part of the final Consent Agenda, with each vote applying to all articles in that part of the Consent Agenda.